

14. *Wells Fargo Bank, NA, v. Binney*, Case No. CIVSB2602313
Plaintiff's Motion to Deem Requests for Admission Served on Defendant as Admitted
8/17/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. The Requests for Admissions, Set One (RFA1) served on Defendant on February 27, 2026, are deemed admitted.

Here, there have been no responses provided to the RFA1 served on Defendant. (Lopez Decl., ¶¶2-3, Exh. 1.) Plaintiff sent a meet-and-confer letter on April 3, 2026, that provided additional time to respond. (Lopez Decl., ¶5 & Exh. 2.) Yet, to date no responses have been provided by Defendant. (Lopez Decl., ¶¶4-5.)

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party." (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)
